

ELIZABETH II



1970 CHAPTER x

An Act to confer further powers on the mayor, aldermen and burgesses of the borough of Huddersfield in relation to the superannuation fund maintained by the said mayor, aldermen and burgesses and in relation to the finances of that borough; and for other purposes.

[15th May 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to the investment of the superannuation fund maintained by the mayor, aldermen and burgesses of the borough of Huddersfield (hereinafter called “the Corporation” and “the borough” respectively) and with reference to the finances of the borough and that the powers of the Corporation should be extended and amended as provided in this Act:

(2) It is expedient that the other provisions in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by

and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Huddersfield Corporation Act 1970.

(2) The Huddersfield Corporation Acts 1852 to 1965 and this Act may be cited together as the Huddersfield Corporation Acts 1852 to 1970.

Interpretation.

2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51.

“the Act of 1933” means the Local Government Act 1933;

1937 c. 68.

“the Act of 1937” means the Local Government Superannuation Act 1937;

1961 c. 62.

“the Act of 1961” means the Trustee Investments Act 1961;

“the borough” means the county borough of Huddersfield;

“the Corporation” means the mayor, aldermen and burgesses of the borough;

“enactment” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

1967 c. 9.

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

“property” and “the wider-range part” in relation to the fund have the same respective meanings as they have for the purposes of the Act of 1961;

“revenues” has the same meaning as in section 218 of the Act of 1933;

“signature” includes a facsimile of a signature by whatever process reproduced.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any enactment including this Act.

Power to
raise money
by bills.

3. In addition to the modes of borrowing prescribed by the Act of 1933 or by any other enactment, the Corporation may raise money—

(1) for any purpose for which the Corporation are authorised to borrow;

- (2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills (to be called "Huddersfield Corporation bills" and in this section referred to collectively as "bills" and separately as a "bill") subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the council of the borough and shall bear the signature of the treasurer of the borough or of some other person authorised by the Corporation:
- (e) The Corporation may make regulations providing for—
 - (i) the preparation and form and the mode of issue, payment and cancellation of bills;
 - (ii) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of seven hundred thousand pounds; or

(ii) one-fifth of the amount of the estimated gross rate income of the borough during the then current financial year; or

(iii) a sum being one-fifth of the aggregate for the then current financial year of—

(A) the amount of the estimated gross rate income of the borough; and

(B) the amount of the net expenses (before levying rates or charges) of the Huddersfield Corporation waterworks undertaking as established by the Huddersfield Corporation Acts 1852 to 1965;

whichever is the greater:

(h) Subject to the provisions of the last preceding paragraph, the Corporation may renew a bill at maturity:

(i) The Corporation may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

Power to raise money by bearer bonds.

4. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to raise money abroad.

5.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Corporation from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

6.—(1) In its application to the investment by the Corporation under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of, but not for the time being required to meet payments out of, the fund, the Act of 1961 shall have effect as if—

Extension of power to invest super-annuation fund moneys.

(a) in Part II (Narrower-Range Investments Requiring Advice) of Schedule 1 to that Act—

(i) for paragraphs 3 and 4 thereof there were substituted the following paragraphs:—

“ 3. In fixed-interest securities issued by any public, municipal or local authority, or any publicly controlled or nationalised industry or undertaking, whether established within or outside the United Kingdom.

4. In fixed-interest securities issued by the government of any territory outside the United Kingdom.”;

(ii) for paragraph 6 thereof there were substituted the following paragraph:—

“ 6. In debentures issued by a company incorporated in the United Kingdom or established under the law of any territory outside the United Kingdom.”;

(iii) in paragraph 9 thereof, the words “in the United Kingdom”, where first occurring, were omitted and the following sub-paragraph were added at the end of that paragraph:—

“ (g) any public, municipal or local authority established outside the United Kingdom.”;

(b) in Part III (Wider-Range Investments) of the said Schedule—

(i) in paragraph 1 for the words “and not being securities falling within Part II of this Schedule” there were substituted the words “or in any securities issued by a company established under the law of any territory outside the United Kingdom, and not being in either case securities falling within Part II of this Schedule”;

(ii) in paragraph 3 there were added at the end the words “or in any units or other shares of a property unit trust.”;

(c) in Part IV (Supplemental) of the said Schedule—

(i) paragraphs 1 and 3 were omitted;

(ii) for paragraph 2 there were substituted the following paragraph:—

“ 2.—(a) Not more than one-tenth of the value of all the investments made at any one time in the manner specified in paragraph 1 of Part III of this Schedule shall be represented by securities the price of which is not quoted on a recognised stock exchange or quoted on a recognised security market;

(b) For the purpose of this paragraph the value of any investment shall be deemed to be the value of the investment at the time at which it was made ”;

(iii) in paragraph 4 after the definition of “ ordinary deposits ” and “ special investments ” there were inserted the following definitions:—

“ ‘ quoted on a recognised security market ’ in its application to securities not registered in the United Kingdom means that the security has been granted an official quotation or is listed on a recognised security market or that dealing prices on such a market in respect of that security are published not less frequently than once a week;

‘ recognised stock exchange ’ in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958 or the Belfast Stock Exchange;

‘ recognised security market ’ in its application to securities not registered in the United Kingdom means a stock exchange an association of stock and share dealers or an over-the-counter market recognised as a market or association in which dealings in the country concerned normally take place.”

(2) Notwithstanding anything in the Act of 1961, the Corporation may invest any property belonging to the wider-range part of the fund in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such property as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the fund.

(3) For the purposes of the last foregoing subsection the value of any investment shall be deemed to be the value of the investment at the time at which it was made.

7.—(1) Subject to the provisions of this section, the powers exercisable by the Corporation under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom and used or to be used for residential, commercial or industrial purposes, but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this subsection.

Investment of super-annuation fund in acquisition, etc., of land.

(2) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection is equal to or greater than one-sixth of the total value of the wider-range part of the fund, no further investment may be made thereunder.

(3) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

(4) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Corporation of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to that Act.

8. The provisions of the last two foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

Section 21 (3) of Act of 1937 not to limit foregoing powers.

9. Nothing in this Act shall be taken as exempting the Corporation from the provisions of the Exchange Control Act 1947.

Saving for Exchange Control Act 1947.

10. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

1947 c. 14. Protection of members and officers of Corporation from personal liability. 1875 c. 55.

11.—(1) The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation and the

Costs of Act.

Corporation shall have power without the consent of any sanctioning authority to borrow the sum required for the payment thereof and shall repay the sum so borrowed within such period as they may determine not exceeding five years from the date of borrowing.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

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